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File No.: EXP202205067

RESOLUTION OF FILE OF ACTIONS

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: On April 13, 2022, a complaint was filed with registration number REGAGE22e00013123651 with the Spanish Agency for Data Protection against SERVIGUIT SERVICIOS 1970, S.L. with NIF B01740661 (hereinafter, the complained party). The reasons for the complaint are as follows:

The complainant states that they received two charges in their bank account from the company Telefónica, listed under the name of the company SERVIGUIT SERVICIOS 1970. They indicate that they have verified that the owner of the aforementioned company is a person from whom they purchased a property in September 2021. They attach to their complaint bank receipts and the deed of sale of the mentioned apartment.

Along with the notification, the following documentation is provided:

- Three bank receipts from TELEFÓNICA DE ESPAÑA, S.A.U. in the name of the complainant domiciled at CAIXABANK.
- Deed of sale of the previously mentioned property.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to the complained party for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in the data protection regulations.

This act is recorded as notified in both cases, but no response has been received.

THIRD: On July 13, 2022, in accordance with Article 65 of the LOPDGDD, the complaint filed was admitted for processing.

FOURTH: The General Sub-Directorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section two, of the LOPDGDD, being aware of the following points:

Upon analyzing the evidence presented by the complainant, it is noted that, in the three bank receipts in the name of the complainant domiciled at CAIXABANK, the ordering entity is TELEFÓNICA DE ESPAÑA, S.A.U. and the holder is SERVIGUIT SERVICIOS 1970, S.L. The concept indicates invoices from November, December, and February for a fixed line: FIJOxxxxxx994.nov, FIJOxxxxxx994.dic, and FIJOxxxxxx994.feb.

Consultation with CAIXABANK on August 24, 2022, to verify the ownership of the account to which the claimed receipts were charged, in their response dated September 7, 2022, confirms that the holder of said account is the complainant.

On August 24, 2022, a request for information was sent to TME to provide, among other matters:

- Point 1.- Information on all contracts held with the complainant.
- Point 2.- Information on all contracts held with the complained party.
- Point 3.- Copy of the contract whose bank receipts were provided by the complainant.
- Point 4.- Screenshot from their systems showing the details of all changes made to the personal data associated with the previous contract from June 1, 2021, to the present. [...]
- Point 5.- Screenshot from their systems showing the details of all changes of direct debit for said contract made from June 1, 2021, to the present.
- Point 6.- Copy of the signed mandate allowing said direct debit.

On September 1, 2022, TME requested an extension of the deadline and submitted their allegations to this Agency on September 12, 2022, in which they state:

- That the complainant was the holder of the service contract called Fusión Contigo between the dates 26/02/2015 and 24/08/2015, at which point the cancellation of the lines was managed.

- The response to points 2, 3, 4, 5, and 6 is as follows:

"This party understands that, in accordance with applicable regulations, since it is a legal entity that would be outside the scope of application of data protection legislation, the requested information is not provided."

In light of the negative response from TME, the request for information was rewritten focusing exclusively from the perspective of the individual complainant and was sent to TME on September 15, 2022:

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- Point 1.- Information regarding all contracts held with the claimed individual, both as a natural person and as a representative of any legal entity.

- Point 2.- Information about the contract whose direct debit account number as of November 2021 is ***ACCOUNT.1, belonging to the claiming party.

- Point 3.- Screenshot from your systems showing the details of all changes to the direct debit of said contract made from June 1, 2021, to the present. [...]

- Point 4.- Copy of the signed mandate that allows for said direct debit.

- Point 5.- Screenshot from your systems showing the details of all changes made to the personal data associated with the previous contract from June 1, 2021, to the present.

- Point 6.- Copy of the signed contract whose bank receipts from November 2021 to February 2022 contain the CCC: ***ACCOUNT.1, account number belonging to the claimant.

On October 10, 2022, TME sends the following information and statements to this Agency:

- That the claimed individual is currently not the holder of any active line. TME provides a list of the lines of which they have been the holder in the time period from 2017 to 2021. TME indicates that the claimed individual is not listed as an interlocutor or representative of a legal entity.

- The response to points 2, 3, 4, 5, and 6 is, again, as follows:

"This party understands that, in accordance with applicable regulations, since it concerns a legal entity that would be outside the scope of data protection legislation, the requested information is not provided."

A final request is made to TME on October 18, 2022, to solely request the signed authorization from the claiming party for the direct debit of bank receipts to their account number: ***ACCOUNT.1.

TME sends its allegations on October 31, 2022, in which, once again, it responds with the following text:

"This party understands that, in accordance with applicable regulations, since it concerns a legal entity that would be outside the scope of data protection legislation, the requested information is not provided."

In parallel, on October 18, 2022, a request for information is sent to CAIXABANK, requesting a copy of the signed mandate that allows for the direct debit of the mentioned bank receipts, which notification is acknowledged on October 19, 2022, but the entity does not send any written allegations. This information is provided later.

Also in parallel, on October 18, 2022, the claimed party, both the company and the individual, is asked for the reason why the bank receipts have been debited to the claimant's bank account and the signed authorization from the claimant for the direct debit of the mentioned bank receipts to their account. The notification to the company is accepted on October 19, 2022, through

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Electronic notification system Notific@, by the holder of the company, which coincides with the natural person to whom the information has also been requested. The postal notification to the natural person

has not yet been collected as of the date of signing this report. The notification is recorded as Absent in Distribution in the SIGRID systems and Returned to Origin due to Excess.

The claimed party submitted to this Agency, on November 13, 2022, the following information and statements:

- That, in September 2021, SERVIGUIT SERVICIOS 1970, S.L, sold by public deed a property owned by it to the claimant.
- That the invoices erroneously charged to the claimant due to an error in the direct debit were debited from the claimant's account without the corresponding authorization from them. It provides a list of the charged invoices indicating the identifier of each invoice and its amount.
- That the claimant at no time informed SERVIGUIT SERVICIOS 1970, S.L of the error in the collection of the aforementioned invoices and proceeded to file a complaint with the AEPD.
- The claimed party continues to explain:

"Upon receiving the request from the AEPD, the legal representative of SERVIGUIT SERVICIOS 1970, S.L, filed a complaint at the MOVISTAR office (complaint number CP2202INBGIFK1/0) located at Avenida Virgen de Montserrat nº 101, in the town of Prat de Llobregat, in the province of Barcelona. In the aforementioned office where the complaint was made, the person who attended him identified themselves as responsible, showed on screen the error that MOVISTAR had made with the charges, and refused to provide any type of receipt, claiming that, due to data protection, they could not provide what was requested in writing.

The error was finally rectified following a complaint to MOVISTAR, the amounts improperly charged were refunded to the claimant due to the aforementioned error, and MOVISTAR modified the account where the direct debits for the services provided by MOVISTAR should be made to the account of SERVIGUIT SERVICIOS 1970, S.L at the only banking entity with which SERVIGUIT SERVICIOS 1970, S.L works, BANC DE SABADELL."

The claimed party provides as evidence a copy of the email sent by reclamaciones@movistar.es to the recipient serviguitservicios@gmail.com with the subject: Resolution of complaint CP2202INBGIFK1/0, in which it indicates that a refund is not appropriate because the charges have been made to the bank account number they have in their database. It informs that, if the charges do not correspond to them, they must process the refund through their banking entity and handle the change of direct debit.

- The claimed party states that "it does not know, nor has it known the data of the claimant's bank account," that "it never authorized any direct debit to any bank account that was not in its ownership" and requests "that the REQUESTS be FORWARDED to MOVISTAR as the issuer of the invoices and the only responsible party for the error in the data of the holder in the debits and that (MOVISTAR) present, if applicable, the SEPA documents, or any direct debit orders signed or authorized by SERVIGUIT SERVICIOS 1970, S.L."

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In the simple copy provided as evidence by the claiming party, there are supporting documents of transfers and bank checks in the name of the claimed party, which display the account number of the claiming party. Therefore, it is evident that the claimed party could indeed access the banking data of the claiming party.

On November 14, 2022, during the interval between the sending of the information request to the claimed party and the receipt of their response, a request for information regarding the financial institution ordering the claimed bank receipts was sent again to CAIXABANK.

CAIXABANK sent the following information and statements to this Agency on November 18, 2022:

- That, "in accordance with Law 16/2009, of November 13, on Payment Services, banking entities do not request the SEPA direct debit orders corresponding to the receipts issued by the issuing entities (the 'creditor entities', according to the payment services regulations). It is the debtor of the creditor entity (which in turn is the client of the financial entity, Caixabank in this case) who gives the order for the direct debit of receipts to the creditor (in this case, Telefónica), and these creditor entities are the

ones responsible for instructing the bank to execute the payment.

[...]

- That "it is not the responsibility of CaixaBank to provide such copies as it does not have them, since it is the responsibility of Telefónica to keep them, in accordance with the applicable regulations.

Therefore, the client should contact Telefónica so that this entity, as the creditor entity, can provide the requested supporting documentation."

On May 11, 2023, a request was sent to TME to provide information on whether the claimed party provided the account number belonging to the claiming party to direct debit the payments for their telephone line, at the time of registration or at any later time.

TME sent its written statement on May 23, 2023, indicating that:

"Once we reviewed our systems, the company SERVIGUIT SERVICIOS 1970, S.L. had associated the bank account ***CUENTA.1 for the direct debit of its Telefónica receipts between the service registration date, October 19, 2021, and February 10, 2022, at which point it was changed to a new bank account."

On May 24, 2023, a request for information was sent again to TME to confirm that the claimed party requested the service registration and provided the account number belonging to the claiming party to direct debit the payments for their telephone line. In the absence of a response after the legally established deadline, the request was reiterated on June 7, 2023, without having received a response from them as of the date of signing this document.

CONCLUSIONS

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It has been verified that in the bank receipts in the name of the claimant, direct debited at CAIXABANK and provided as evidence, the ordering entity is TELEFÓNICA DE ESPAÑA, S.A.U. (TME) and the holder is SERVIGUIT SERVICIOS 1970, S.L. (claimed party).

It has been confirmed that the ownership of the account to which the claimed receipts have been charged corresponds to the claiming party.

The reported entity indicates that it is not responsible for the claimed facts. It states that it filed a complaint at a MOVISTAR office, where they showed on screen the error that MOVISTAR had made with the charges.

The claimed party explains that the error was finally corrected after a complaint to MOVISTAR: the amounts charged improperly were refunded to the claimant, and MOVISTAR modified the account where the direct debits for the services provided by MOVISTAR should be made to the account of SERVIGUIT SERVICIOS 1970, S.L.

The claimed party states that "it does not know, nor has it ever known the details of the claimant's bank account" and that "it never authorized any direct debit to any bank account that was not in its ownership." It has been evidenced that the claimed party could indeed access the banking data of the claiming party, as such data appears in the supporting documents of transfers and bank checks in the name of the claimed party included in the simple copy that the claiming party has provided as evidence.

No evidence has been obtained from TME regarding the proven facts. Three requests for information have been sent to TME to gather information on the authorization of the payment of the claimed receipts, and this entity has responded with the same evasive answer:

"This party understands that, in accordance with applicable regulations, as it is a legal entity that would be outside the scope of application of data protection legislation, the requested information is not provided."

TME has only confirmed that "the company SERVIGUIT SERVICIOS 1970, S.L. had associated the bank account ***CUENTA.1 for the direct debit of its Telefónica receipts between the service registration date, October 19, 2021, and February 10, 2022, at which point it was changed to a new

bank account."

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f) and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of the Law

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Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), grants competence to resolve these investigative actions to the Director of the Spanish Agency for the Protection of Data.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Principles Relating to Processing

Letter a) of Article 5.1 of the GDPR advocates:

"1. Personal data shall be:

a) processed lawfully, fairly, and transparently in relation to the data subject ('lawfulness, fairness, and transparency');"

III

Lawfulness of Processing

Article 6.1 of the GDPR establishes the following:

"The processing shall be lawful only if at least one of the following applies:

a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes;

b) the processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract;

c) the processing is necessary for compliance with a legal obligation to which the controller is subject;

d) the processing is necessary to protect the vital interests of the data subject or of another natural person;

e) the processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

f) the processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in letter f) of the first paragraph shall not apply to processing carried out by public authorities in the performance of their tasks."

IV

Conclusion

The complainant claims to have received two charges in their bank account from the company TELEFÓNICA, listed under the name of the company SERVICUT SERVICIOS 1970. They indicate that they have verified that the owner of the aforementioned company is a person to whom they sold a property in September 2021. They attach bank receipts and the deed of sale of the mentioned apartment to their complaint.

Upon reviewing the mentioned receipts, it is confirmed that the complainant received the payments in their bank account. An indication that the direct debit may have been made by the complainant is the prior celebration between both parties of a legal transaction related to the sale of a property. However, this contract does not, by itself, prove that the party being complained about was the one who subsequently set up the direct debit for the receipts.

During the preliminary investigative actions, information regarding this matter has been repeatedly requested from the telecommunications operator TELEFÓNICA DE ESPAÑA S.A., which has not provided all the required information regarding whether the party being complained about was the one who at that time would have provided the complainant's account number. Without prejudice to the responsibility that may correspond to this company, this has resulted in a lack of information about who and through what means the direct debit was made. Additionally, TELEFÓNICA DE ESPAÑA informs that the complainant had been a previous customer.

For its part, the party being complained about also repeatedly denies having made the direct debit. This, combined with the lack of sufficient information regarding the conditions under which the direct debit would have occurred, raises reasonable doubt about the commission of an infringement by the party being complained about.

Therefore, based on the indications in the previous paragraphs, no evidence has been found that proves the existence of an infringement within the jurisdiction of the Spanish Agency for the Protection of Data.

Thus, by virtue of the principle of presumption of innocence, as it has not been possible to attribute the commission of the infringement to the party being complained about, in accordance with the aforementioned, the Director of the Spanish Agency for the Protection of Data, IT IS AGREED:

FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to SERVIGUIT SERVICIOS 1970, S.L. and to the complainant. In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

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Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of Articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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